

COMMITTEE ON TRANSPORTATION & INFRASTRUCTURE
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1452
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 41, chapter 1, article 5, Arizona Revised
3 Statutes, is amended by adding section 41-191.14, to read:

4 41-191.14. Cargo theft task force; members; duties; annual
5 report; definitions

6 A. [SUBJECT TO LEGISLATIVE APPROPRIATION.] THE ATTORNEY GENERAL
7 SHALL ESTABLISH A CARGO THEFT TASK FORCE TO COMBAT CRIMES INVOLVING THE
8 THEFT, DIVERSION, EMBEZZLEMENT, UNLAWFUL TAKING OR FRAUDULENT ACQUISITION
9 OF CARGO OR FREIGHT. THE ATTORNEY GENERAL SHALL INVITE FEDERAL, STATE AND
10 LOCAL LAW ENFORCEMENT AGENCIES TO PARTICIPATE IN THE TASK FORCE TO USE THE
11 COMBINED SKILLS, EXPERTISE AND RESOURCES OF LAW ENFORCEMENT PERSONNEL MORE
12 EFFECTIVELY. THE TASK FORCE SHALL FOCUS ON OFFENSES INVOLVING CARGO
13 MOVING IN, CONSTITUTING OR AFFECTING INTERSTATE OR INTRASTATE COMMERCE.

14 B. THE TASK FORCE SHALL CONSIST OF THE FOLLOWING MEMBERS:

15 1. ONE FULL-TIME:

16 (a) PROSECUTOR.

17 (b) PARALEGAL.

18 (c) SUPPORT STAFF MEMBER.

19 2. SIX INVESTIGATORS.

20 3. ANY ADDITIONAL LAW ENFORCEMENT PERSONNEL DESIGNATED BY THE
21 ATTORNEY GENERAL.

22 C. THE TASK FORCE SHALL:

23 1. MEET REGULARLY TO REVIEW INVESTIGATIONS AND INTELLIGENCE AND TO
24 PROVIDE UPDATES ON ONGOING CASES TO TASK FORCE MEMBERS.

25 2. INVESTIGATE, APPREHEND AND RECOMMEND FOR PROSECUTION, AS
26 APPROPRIATE, INDIVIDUALS OR ENTITIES THAT ENGAGE IN CARGO THEFT OR RELATED
27 OFFENSES, INCLUDING ORGANIZED OR REPEAT OFFENDERS AND PERSONS WHO
28 KNOWINGLY FACILITATE, FINANCE OR RECEIVE STOLEN CARGO FOR FINANCIAL GAIN.

1 3. INVESTIGATE OFFENSES OR VIOLATIONS THAT ARE UNDER THE ATTORNEY
2 GENERAL'S JURISDICTION AS PRESCRIBED BY SECTION 21-422.
3 4. REVIEW, INVESTIGATE AND RECOMMEND FOR PROSECUTION APPROPRIATE
4 CASES REFERRED BY FEDERAL, STATE OR LOCAL LAW ENFORCEMENT AGENCIES.
5 5. COORDINATE WITH LAW ENFORCEMENT AGENCIES AND INDUSTRY
6 STAKEHOLDERS TO IDENTIFY EMERGING CARGO THEFT TRENDS AND METHODS AND TO
7 RECOMMEND PREVENTION STRATEGIES.
8 D. ON OR BEFORE JULY 1, 2027 AND EACH YEAR THEREAFTER, THE ATTORNEY
9 GENERAL SHALL SUBMIT A REPORT TO THE GOVERNOR, THE PRESIDENT OF THE SENATE
10 AND THE SPEAKER OF THE HOUSE OF REPRESENTATIVES AND PROVIDE A COPY OF THE
11 REPORT TO THE SECRETARY OF STATE ON THE TASK FORCE'S ACTIVITIES. THE
12 REPORT MUST INCLUDE ALL OF THE FOLLOWING, TO THE EXTENT APPLICABLE:
13 1. A SUMMARY OF INVESTIGATIONS, PROSECUTIONS AND ENFORCEMENT
14 ACTIONS TAKEN BY THE TASK FORCE.
15 2. INFORMATION REGARDING TRENDS AND PATTERNS RELATED TO CARGO THEFT
16 IN THIS STATE.
17 3. THE AMOUNT AND TYPE OF STOLEN CARGO RECOVERED.
18 4. THE NUMBER OF CASES IN WHICH RESTITUTION WAS ORDERED AND THE
19 TOTAL VALUE OF RESTITUTION ORDERED AND COLLECTED.
20 5. THE VALUE OF ASSETS FORFEITED PURSUANT TO EXISTING LAW.
21 6. ANY RECOMMENDATIONS FOR LEGISLATIVE OR POLICY ACTION RELATING TO
22 CRIMINAL PENALTIES, ENFORCEMENT TOOLS OR INTERAGENCY COORDINATION TO
23 REDUCE CARGO THEFT AND PROTECT THE ECONOMY OF THIS STATE.
24 E. FOR THE PURPOSES OF THIS SECTION:
25 1. "CARGO" MEANS MERCHANDISE, GOODS OR WARES THAT ARE TRANSPORTED
26 OR INTENDED TO BE TRANSPORTED IN COMMERCE, INCLUDING GOODS AT ANY STAGE OF
27 THE SUPPLY CHAIN FROM ORIGIN TO FINAL DESTINATION, WHETHER THE GOODS ARE
28 MOVING OR TEMPORARILY STORED.
29 2. "CARGO THEFT" INCLUDES UNLAWFUL TAKING OR APPROPRIATING CARGO OR
30 FREIGHT, INCLUDING THEFT ACCOMPLISHED THROUGH FRAUD, DECEPTION,
31 MISREPRESENTATION OR IDENTITY MANIPULATION, FROM A COMMERCIAL MOTOR
32 VEHICLE, TRAILER, RAILCAR, INTERMODAL CONTAINER, WAREHOUSE, FREIGHT
33 FACILITY, DISTRIBUTION CENTER OR OTHER LOCATION WITHIN THE SUPPLY CHAIN,
34 WHETHER THE CARGO IS MOVING IN INTERSTATE OR INTRASTATE COMMERCE.

35 Enroll and engross to conform
36 Amend title to conform
And, as so amended, it do pass

LEO BIASIUCCI
CHAIRMAN

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